

Multiple Choice

1. **Answer:** E

Options: A) The UK Constitution is based on a Bill of Rights; B) The UK Constitution gives the judiciary the power to overturn acts of parliament; C) The UK Constitution's power is derived solely from Parliament; D) The UK Constitution is codified and contained in a single document; E) The UK Constitution is uncoded and can be found in a number of sources

Note: The UK Constitution is considered uncoded because it is not contained in a single written document, but rather consists of various statutes, conventions, legal precedents, and works of authority, which collectively govern the constitutional framework of the country.

2. **Answer:** A

Options: A) Pound; B) Austin; C) Savigny; D) Hart; E) Bentham

Note: The correct answer is Pound because he emphasized that jurisprudence provides the critical perspective necessary to understand and interpret the law, thereby serving as its guiding vision or "eye."

3. **Answer:** C

Options: A) Standard-setting means setting certain standards of conduct in human rights treaties; B) Standard-setting means putting forward both binding and non-binding legal standards; C) Standard-setting means putting forward non-binding legal standards; D) Standard-setting means enforcing human rights treaties; E) Standard-setting means establishing a set of universal human rights principles

Note: Standard-setting in human rights diplomacy involves establishing non-binding legal standards that provide guidelines for the promotion and protection of human rights, thereby influencing state behavior and fostering accountability without imposing legally enforceable obligations.

4. **Answer:** D

Options: A) The Court held that the right to a fair trial trumped the privilege of immunity; B) The Court held that the privilege of immunity was not applicable in this case; C) The Court held that the right to a fair trial was not applicable in this case; D) The Court held that immunities were not in conflict with the right to a fair trial; E) The Court held that the case was admissible due to overriding human rights considerations

Note: The European Court of Human Rights determined in the Al-Adsani case that state immunity does not inherently violate the right to a fair trial, affirming the principle that immunities can coexist with human rights protections under certain circumstances.

5. **Answer:** A

Options: A) Vengeance.; B) Deterrence.; C) Restoration.; D) Moral education.; E) Indemnification.

Note: Durkheim believed that punishment serves a social function by expressing collective sentiments and reinforcing social cohesion, where the concept of vengeance reflects society's moral outrage and the desire for retribution against offenders, thereby maintaining social order.

True / False

6. **Answer:** False

Options: A) True; B) False

Note: Standard-setting in human rights diplomacy involves the creation of non-binding principles and guidelines that countries are encouraged to follow, rather than establishing legally binding obligations.

7. **Answer:** True

Options: A) True; B) False

Note: The original position, as conceptualized by John Rawls, prioritizes the distribution of primary goods, such as wealth, which are necessary for individuals to pursue their own conception of the good life, thereby suggesting that individuals would favor wealth over a purely compassionate societal structure.

8. **Answer:** True

Options: A) True; B) False

Note: The defense power, as outlined in the U.S. Constitution, is primarily intended for the protection of the nation and does not independently grant Congress the authority to legislate on matters outside of national defense, thus requiring additional constitutional powers for enacting federal law.

9. **Answer:** True

Options: A) True; B) False

Note: The case of *Goodwin v UK* (2002) exemplifies the 'living instrument principle' as it demonstrates the European Court of Human Rights' approach to interpreting the European Convention on Human Rights in a dynamic manner, adapting its meaning to reflect contemporary societal values and standards.

10. **Answer:** False

Options: A) True; B) False

Note: Many critical legal theorists argue that law is inherently indeterminate and that judicial decisions are influenced by social, political, and personal factors, leading to unpredictable outcomes.

Long Form Response

11. **Answer:** The International Court of Justice (ICJ) has shown a generally accommodating stance towards the accumulation theory of armed attacks, suggesting that it recognizes the potential for a series of lower intensity acts to cumulatively constitute an armed attack under international law. This perspective is significant, as it allows for a more nuanced understanding of state responses to ongoing hostilities that may not individually reach the threshold of an armed attack. By endorsing the accumulation theory, the ICJ implies that states have the right to self-defense not only against singular aggressive acts but also against a pattern of conduct that collectively poses a threat to their sovereignty. This interpretation aligns with the principles of proportionality and necessity in the context of self-defense, thereby reinforcing the legitimacy of states responding to cumulative lower intensity forces as a means to safeguard their security.
Note: correct because it accurately reflects the ICJ's interpretation that a series of lesser acts can cumulatively meet the threshold of an armed attack, thereby allowing states to respond to ongoing hostilities that might not individually qualify as such under international law.
12. **Answer:** In a stock fraud case, the admissibility of newspaper evidence is critical as it can establish the context and public perception surrounding the alleged fraudulent activities. Such evidence is typically relevant to the investor's argument, as it may demonstrate how misleading information influenced investment decisions and contributed to financial losses. From a constitutional law perspective, the admission of this evidence must align with the principles of due process, ensuring that it does not violate the defendant's rights while being pertinent to the case. Therefore, newspaper evidence is generally admitted in court because it serves a significant role in illustrating the broader narrative of the fraud, thereby supporting the investor's claims.
Note: correct because it emphasizes the relevance of newspaper evidence in illustrating the impact of public perception on investor decisions, while also addressing the constitutional requirement of due process in the admissibility of such evidence.